

REFERRAL & MARKETING PARTNERSHIP AGREEMENT

This Referral & Marketing Partnership Agreement (“Agreement”) is made on this _____ day of _____ 20____.

BETWEEN

ENSHRINE PETS PARADISE PTE. LTD. (UEN: 202328981K) a company incorporated in Singapore with its registered office at **74 Lorong 6 Geylang Singapore 399226.** (hereinafter referred to as the “Company”)

AND

_____ (UEN/NRIC: _____)
of address _____
(hereinafter referred to as the “Vendor”)

The Company and the Vendor shall collectively be referred to as the “Parties” and individually as a “Party”.

1. PURPOSE

1.1 The Company is engaged in the business of providing pet afterlife services, including but not limited to pet columbarium niches, ash storage, memorial services, cremation arrangements, and related services.

1.2 The Vendor wishes to refer potential customers to the Company and assist in the marketing and promotion of the Company’s services, subject to the terms and conditions of this Agreement.

1.3 This Agreement shall constitute a non-exclusive referral and marketing arrangement between the Parties.

2. APPOINTMENT

2.1 The Company hereby appoints the Vendor as a non-exclusive Referral & Marketing Partner for the promotion and referral of the Company’s services.

2.2 The Vendor shall be entitled to introduce and refer potential customers to the Company for the Company’s services.

2.3 Nothing in this Agreement shall be construed as creating any partnership, joint venture, employment, agency, or fiduciary relationship between the Parties.

3. SCOPE OF SERVICES

3.1 The Vendor may:

- introduce prospective customers to the Company;
- distribute marketing materials approved by the Company;
- promote the Company's services through lawful means; and
- facilitate communication between customers and the Company.

3.2 The Vendor shall not:

- make any representation, warranty, or promise on behalf of the Company unless authorised in writing;
- alter the pricing, terms, or conditions of the Company's services;
- enter into any contract on behalf of the Company; or
- collect any payment on behalf of the Company unless expressly authorised in writing.

4. MARKETING MATERIALS & BRANDING

4.1 The Company may provide brochures, logos, marketing materials, and promotional content to the Vendor for the purposes of this Agreement.

4.2 All intellectual property rights relating to the Company's name, logo, branding, materials, and services shall remain the sole property of the Company.

4.3 The Vendor shall not modify, reproduce, or use the Company's branding or materials in any manner not approved by the Company.

5. VENDOR OBLIGATIONS

5.1 The Vendor shall:

- conduct itself professionally and ethically at all times;
- refrain from making misleading or inaccurate statements;
- comply with all applicable laws and regulations; and
- avoid any conduct that may damage the reputation or goodwill of the Company.

5.2 The Vendor shall immediately notify the Company of any customer complaints or disputes relating to the Company's services.

6. CUSTOMER RELATIONSHIP

6.1 All customers referred to the Company shall remain customers of the Company.

6.2 The Company shall have sole discretion over:

- acceptance of customers;
- pricing;
- service arrangements; and
- contractual terms with customers.

7. CONFIDENTIALITY

7.1 The Vendor shall keep confidential all non-public information relating to the Company, including but not limited to:

- pricing structures;
- customer information;
- business operations;
- commission arrangements; and
- marketing strategies.

7.2 The Vendor shall not disclose such information to any third party without the prior written consent of the Company.

7.3 This Clause shall survive the termination of this Agreement.

8. INDEPENDENT CONTRACTOR

8.1 The Vendor is engaged as an independent contractor.

8.2 Nothing in this Agreement shall render the Vendor:

- an employee of the Company;
- a partner of the Company;
- an agent authorised to bind the Company; or
- entitled to employee benefits, CPF contributions, or compensation of any nature unless otherwise agreed in writing.

9. LIMITATION OF AUTHORITY

9.1 The Vendor shall have no authority to bind the Company to any agreement, obligation, representation, warranty, or liability whatsoever.

9.2 Any unauthorised undertaking made by the Vendor shall be the sole responsibility of the Vendor.

10. TERM & TERMINATION

10.1 This Agreement shall commence on the date first written above and shall continue unless terminated in accordance with this Clause.

10.2 Either Party may terminate this Agreement by giving fourteen (14) days' written notice to the other Party.

10.3 The Company may terminate this Agreement immediately without prior notice if the Vendor:

- commits misconduct;
- breaches any provision of this Agreement;
- engages in conduct detrimental to the Company's reputation;
- makes unauthorised representations; or
- violates any applicable law or regulation.

10.4 Upon termination:

- the Vendor shall immediately cease using the Company's marketing materials and branding;
- no further commission shall accrue after the termination date unless otherwise approved by the Company in writing; and
- all confidential information shall remain protected.

11. LIABILITY & INDEMNITY

11.1 The Company shall not be liable for any loss, damage, claim, or expense arising from the Vendor's acts, omissions, representations, or conduct.

11.2 The Vendor shall indemnify and hold harmless the Company against any claims, liabilities, damages, costs, or expenses arising from:

- the Vendor's breach of this Agreement;
- negligence or misconduct of the Vendor; or
- unauthorised representations made by the Vendor.

12. NON-EXCLUSIVITY

12.1 This Agreement is non-exclusive.

12.2 The Company shall be entitled to appoint other vendors, referral partners, distributors, or representatives at its sole discretion.

13. AMENDMENTS

13.1 The Company reserves the right to amend the terms of this Agreement from time to time.

13.2 Any amendments shall take effect upon written notice to the Vendor.

15. GOVERNING LAW

15.1 This Agreement shall be governed by and construed in accordance with the laws of Singapore.

15.2 The Parties submit to the exclusive jurisdiction of the Courts of Singapore.

16. ENTIRE AGREEMENT

16.1 This Agreement constitutes the entire agreement between the Parties and supersedes all prior discussions, representations, or understandings relating to its subject matter.

IN WITNESS WHEREOF

The Parties hereto have executed this Agreement on the date first above written.

SIGNED by Enshrine Pets Paradise Pte Ltd)

Name : _____)

Designation : _____)

Date : _____)

SIGNED by Vendor _____)

Name : _____)

NRIC No. / UEN : _____)

Designation : _____)

Date : _____)